

HOUSE No. 2590

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act making firearm owners civilly liable for damage caused by lost or stolen firearms.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>5/28/2025</i>

HOUSE No. 2590

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 2590) of Marjorie C. Decker relative to making firearm owners civilly liable for damage caused by lost or stolen firearms. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making firearm owners civilly liable for damage caused by lost or stolen firearms.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 129C of chapter 140 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after the third paragraph the following paragraph:-

3 Whoever fails to report the loss or theft of a firearm, rifle, shotgun or machine gun that is
4 later used in the commission of a crime shall be civilly liable for any damages resulting from that
5 crime. The liability imposed under this paragraph shall not apply if the owner reports the loss or
6 theft of such firearm, rifle, shotgun or machine gun to the commissioner of the department of
7 criminal justice information services and the licensing authority in the city or town where the
8 owner resides within 24 hours of the owner's knowledge of such loss or theft.